REPORTABLE (104)

JOCKSTAR INVESTMENTS (PRIVATE) LIMITED
v
(1) SIPIWE SLYVIA DZUMBIRA (2) TENDAI MICHAEL DZUMBIRA

SUPREME COURT OF ZIMBABWE
MATHONSI JA
HARARE: 15 OCTOBER 2025 & 10 NOVEMBER 2025

A. Mtima, for the applicant

T. Machaka, for the respondents

IN CHAMBERS

MATHONSI JA:

This is an opposed application for condonation and extension of time within which to file heads of argument and for reinstatement of an appeal which was deemed abandoned and therefore dismissed by operation of law. The application is made in terms of r 76 (2) as read with r 58 (2) of the Supreme Court Rules, 2025.

I hold the view that the application is spectacularly without merit as it does not satisfy the requirements for the grant of the indulgence of condonation of the failure to comply with the rules and the intended appeal does not enjoy prospects of success. Historically, the applicant has made it a habit to flout the rules of court as a result of which it has made a significant number of applications leading up to the present one in an endeavor to pursue its appeal against a judgment of the High Court ("the court *a quo*") handed down on 17 February 2025. The application therefore is susceptible to being dismissed with costs.

THE FACTS

The manner in which the applicant sought to raise a special plea of prescription in proceedings before the court *a quo* is novel indeed and betrays a complete lack of *bona fides*.

The applicant is an incorporation which is into property development and is the owner of what was described as an "unimproved land called Zizalisari Lot 4 held under Deed of Transfer number 1406/2003." The land is situated in Harare and was being subdivided in terms of a subdivision permit for purposes of selling the subdivisions.

The first and the second respondents are a couple which was desirous to purchase an undeveloped stand. As a result, on 22 March 2010, the parties entered into an agreement of sale heavy with conditions. Its preamble recognized, *inter alia*, that a subdivision permit had been granted, the seller wished to subdivide the piece of land, submissions "of all necessary drawings in order to obtain approvals for the survey work" were yet to be made to the department of the Surveyor General, the Surveyor General and other relevant authorities could modify or change the size or shape of the stand and "the seller has instituted legal proceedings to effect the transfer of the property to itself." Clearly at the time of the sale agreement, the applicant had not taken transfer of the land.

In terms of the agreement, the respondents purchased Stand 2603 Zizalisari Lot 4 in Harare for the purchase price of US$15 000.00 which was to be paid in certain instalments, the last of which was in July 2010. Occupation was to be given to the purchasers "after transfer of the property."

It is common cause that the respondents paid the purchase price in full, in terms of the agreement and that the applicant did not effect transfer of the stand to them even though, in

terms of Clause 15 of the agreement, the applicant was obliged to appoint conveyancers to undertake the exercise. In terms of Clause 7:

> "**7. TRANSFER**.
>
> (a) The Seller undertakes to tender transfer of the stands (*sic*) to the Purchaser (*sic*) after all the conditions stated in this agreement of sale have been met.
>
> (b) The Seller shall tender transfer of the stand to the Purchaser in terms of this agreement and the Purchaser shall provide the Seller's Conveyancer with:
>
> (i) the amount of all the costs of transfer.
> (ii) all such data, information and documents duly completed as may have been requested by the conveyancer."

None of this happened even though the purchase price was paid as far back as July 2010. Quite to the contrary, on 10 March 2021, the applicant issued summons out of the court *a quo* against the respondents seeking an order of confirmation of the cancellation of the agreement of sale and costs of suit. In its declaration, the applicant averred at paras 5 to 9 thereof thus:

> "5. Subsequent to the same agreement, the parties then agreed that the purchase price of US$15 000.00 would result in unequal exchange of value and agreed to an additional payment of development fees in the sum of US$6 500.00.
>
> 6. In breach of the agreement, defendants failed, refused or neglected to pay the outstanding US$6 500.00 in development fees.
>
> 7. In terms of Clause 12 of the Agreement of Sale, in the event that a party commits a breach, he or she must be given 14 day notice to remedy the breach after which in the event of failure, plaintiff will have a right to summarily terminate the agreement.
>
> 8. On the 7th of March 2019, plaintiff made a demand coupled with a notice to rectify the breach emanating from non-payment of the outstanding amount to the defendants, which demand defendants failed, refused and/or neglected to settle.
>
> 9. Plaintiff on the 29th of March 2019 after the lapse of the 14 day period referred in Clause 12 then proceeded to summarily cancel the agreement through a written notice."

The respondents contested the summons action and filed a counter claim seeking an order compelling the applicant to transfer the stand in question to them. In the alternative, they

sought an order for damages in the sum equivalent to the replacement value of the stand. It is at that late stage that the applicant engaged in litigation gymnastics. It withdrew its main claim against the respondents leaving only the counter claim being pursued. It then filed a notice to amend its plea to the counter claim by introducing a paragraph to the effect that the respondents` counterclaim was prescribed by reason that the last instalment was paid on 2 July 2010. To that extent, the cause of action having arisen then, the 3 years within which the respondents were entitled to sue for transfer had expired.

The court *a quo* was called upon to determine whether the respondent`s counter claim had prescribed. After hearing evidence led on that aspect it found that the applicant failed to discharge the onus resting on it to prove that the claim was extinguished by prescription. In its view, the applicant`s witness failed to provide a specific date when prescription started running. It reasoned that the obligation to effect transfer lay with the applicant which however failed to take action. It concluded that the running of prescription was, in any event, interrupted by conduct.

It is that judgment which the applicant sought to appeal against. On 17 March 2025, the applicant filed its appeal under case number SC 178/25. In breach of the rules, the applicant failed to serve the notice of appeal upon the Registrar of the High Court as a result of which the appeal was deemed abandoned and dismissed.

Finding itself in that state of bother the applicant filed an application under case number SC 317/25 seeking condonation and reinstatement of the appeal. The respondents did not oppose the application as a result of which this Court granted an order on 28 May 2025 condoning the non-compliance with the rules and reinstating the appeal.

No sooner had the appeal been reinstated than it was again dismissed. The circumstances leading to its second dismissal are that, by letter dated 1 July 2025, the Registrar notified the applicant to file its heads of argument in support of the appeal within 15 days and warned that should it fail to do so, the matter would be regarded as abandoned and deemed dismissed. The applicant does not appear to have taken the notification seriously because it was not until 15 days later on 16 July 2025 that its legal practitioner sent an email to Advocate *Maunze* instructing him to "urgently draft the heads of argument" in question.

Not surprisingly the advocate only responded to the email by email dated 22 July 2025, the very day the *dies inducae* for the filing of heads of argument expired, stating:

"Good morning

1. I have received the brief.
   Thank you

2. May I please have the record so that I can draw the heads."

Not only did the good advocate not have the appeal record that would enable him to prepare the heads of argument, the horse had already bolted. There can be no worse lackadaisical approach to litigation. Inevitably, by letter dated 23 July 2025, the Registrar again notified the applicant of the fate of its appeal. In terms of r 59(1) of the Court`s rules, it was deemed abandoned and accordingly dismissed.

Back at square one, the applicant launched another application for condonation and reinstatement of appeal. The application was filed without a supporting affidavit on 7 August 2025 under SC 624/25. On 3 September 2025, the application was struck off the roll as it was fatally defective. The applicant would not relent. It filed a similar application under case number SC

721/25 on 16 September 2025 which came to naught as it was withdrawn on 26 September 2025 after defects were pointed out by the respondents in their opposition to it.

THE APPLICATION

The present application was filed on 1 October 2025 and in it the applicant seeks, for the umpteenth time, to be condoned for the failure to comply with the rules. It seeks an extension of time within which to file heads of argument and the reinstatement of its appeal. The appeal was dismissed on 23 July 2025 which means that this application was made almost one month and two weeks later. While the period in question is not inordinate, it still calls for an explanation from the applicant. Also requiring an explanation is the applicant's failure to timeously file heads of argument leading to the dismissal of the appeal.

For failure to file heads of argument on time, the applicant blames Advocate *Maunze*. It says it instructed him to settle the heads of argument but he failed to do so because he "was tied up with other professional obligations and could not finalize the heads of argument on time". No affidavit has been elicited from Advocate *Maunze* to confirm that story. It is unlikely that he would have taken ownership of the default given that he was instructed at the eleventh hour. Instead, the applicant attached a supporting affidavit by its lawyer, *Abel Tatenda Mtima,* which is woefully unhelpful.

On the prospects of success of the appeal, the applicant`s case is that it wishes to challenge the judgment of the court *a quo* on 4 grounds, to wit:

"**GROUNDS OF APPEAL**

1. The court *a quo* erred in rejecting the appellant`s contention that the prescription started to run on 2 July 2010 when there was no rebuttal evidence from the respondents.

2. The court *a quo* erred in requiring the appellant to produce a company policy to prove when prescription commenced to run when prescription runs by operation of law.
3. The court *a quo* erred in holding that there was interruption of prescription when the criminal proceedings were not successfully prosecuted to finality.
4. The court *a quo* erred in failing to determine whether the respondents should be deemed to know that all the conditions in their sale agreement were met on 02 July 2010."

The applicant stated that the above grounds of appeal have prospects of success because this Court previously reinstated the appeal having taken them into account. Beyond that the applicant said nothing.

The respondents opposed the application. In doing so, they pointed to the number of times the applicant has fallen foul of the rules of Court. In their view, this being the applicant's fourth application for condonation and reinstatement of the appeal, and the applicant having been legally represented all the time, it is clear that it has no respect for the rules. Its "blatant disregard of the rules of court" cannot be condoned any longer.

On the prospects of success of the appeal, the respondents maintained that prescription could only start running after all the conditions set out in the agreement had been met. In the absence of any evidence showing when the conditions were met, it can only follow that the cause of action only arose when the applicant instituted summons action against them in 2021. The act of issuing summons showed that the applicant was no longer interested in effecting transfer of the stand to them, hence the filing of the counter claim.

THE LAW

The law regulating applications of this nature is settled in this jurisdiction. Before granting the indulgence of condonation, the Court must be satisfied that there is good and sufficient cause for condoning the non-compliance with the rules. Good and sufficient cause is established by cumulatively considering the extent of the delay, the explanation for that delay and the strength of the applicant's case on appeal. See *Bonnyview Estates (Pvt) Ltd* v *Zimbabwe Platinum Mines (Pvt) Ltd & Anor* SC 58/18.

The factors relevant to the exercise of the indulgence of condonation are considered conjunctively as a whole. An applicant must provide an acceptable explanation for the non-compliance. As stated in *Zimslate Quartzite (Pvt) Ltd & Ors* v *Central African Building Society* SC 34/17 at p 7:

> "An applicant, who infringes the rules of the court before which he appears, must apply for condonation and in that application explain the reasons for the infraction. He must take the court into his confidence and give an honest account of his default in order to enable the court to arrive at a decision as to whether to grant the indulgence sought. An applicant who takes the attitude that indulgences, including that of condonation, are there for the asking does himself a disservice as he takes the risk of having his application dismissed."

It is now settled as well that, where the failure to comply with the rules is blamed on the applicant's legal practitioner, a supporting affidavit to that effect must be elicited from the said legal practitioner. This was stated in *Riozim Limited* v *Dixon-Warren N.O* SC 21/23 at p 9 thus:

> "Further, having blamed the legal practitioner for its failure to comply with the rules, the applicant failed to furnish this Court with a supporting affidavit of the legal practitioners concerned. In this regard see *Diocese of Harare* v *The Church of the Province of Central Africa* SC 9/10. The applicant's explanation cannot therefore be adequate in the absence of a supporting affidavit from the legal practitioner who is blamed for the non-compliance with the rules."

The applicant intends to argue the question of prescription on appeal. The running of prescription is interrupted by an express or tacit acknowledgment of liability. In terms of s 18 of the Prescription Act [*Chapter 8:11*]:

> "**18. Prescription interrupted by acknowledgment of liability.**
> (1) The running of prescription shall be interrupted by an express or tacit acknowledgment of liability by the debtor.
>
> (2) If the running of prescription is interrupted in terms of subs (1) prescription shall commence to run afresh-
> (a) from the date on which the interruption takes place; or
> (b) if at the time of the interruption or at any time thereafter the parties postpone the due date of the debt, from the date upon which the debt becomes due"

These provisions came under scrutiny by this Court in *FMB Zimbabwe Ltd* v *Fortress Industries Investments (Pvt) Ltd & Anor* 2000 (1) ZLR 221 (S) at p 224G-H – 225A-C, where it was said;

> "Section 18 (1) of the Act, …. does not provide examples of conduct constituting an acknowledgement of liability. Acknowledgement may therefore take the form of part payment of the debt or payment of interest thereon. (See *Cape Town Municipality* v *Allie* 1981 (2) SAI (C)); or, the giving of security for payment of the debt. (See *Markham* v *South African Finance & Industrial Co Ltd* 1962 (3) SA 669 (A) at p 676E). And an acknowledgment of partial liability for the debt interrupts prescription in respect of the entire indebtedness.
>
> The use by legislature of the word 'tacit' in s 18 (1) is important. It signifies that the debtor's words and conduct should be taken into account. (See *Cape Town Municipality* v *Allie, Supra* at 7D). However, conduct alleged to constitute a tacit acknowledgment of liability must be seen in proper context. See *Benson & Anor* v *Walters & Ors* 1984 (1) SA 73 (A) at 87C – 88A.
>
> Finally, in the review of the general principles applicable to the interruption of prescription, it should not be over looked that in the determination of whether an existing liability was acknowledged an objective assessment must be made of what the debtor's conduct conveyed in respect of whether or not it was subjectively intended to acknowledge liability. See *Agnew* v *Union and South West African insurance Co Ltd* 1977 (1) SA 617 (A) at 623 B-C. That inquiry will always be a factual one. See *Petzer* v *Radford (Pvt) Ltd* 1953 (4) A 314 (N) at 318 E.

In *Cape Town Municipality* v *Allie* 1981 (2) SA 1 (C), MARAISA J, in exposing a similar South African statutory provision in the South African legislation and after emphasizing the importance of the use of the word "tacit" had this to say at p 7 G-H:

> 'Thirdly, the test is objective. What did the debtor's conduct convey outwardly? I think this must be so because the concept of a tacit acknowledgement of liability is irreconcilable with the debtor being permitted to negate or nullify the impression which his outward conduct conveyed, by claiming *ex post facto* to have had the subjective intent which is at odds with his outward conduct.'"

By its very nature, prescription is a special defence which must be specifically and distinctly pleaded in a special plea. The plea must set out sufficient facts to show the basis of the defence. See (1) *Brooker* v *Mudhanda & Anor*; (2) *Peace* v *Mudhanda & Anor* 2018 (1) ZLR 33 (S) at 38 F-G.

It is also important to note that before it can be upheld, prescription must be established by evidence. Where it is not, it cannot succeed. That is the point expressed by GARWE JCC in *Dengezi* v *Nyamururu & Ors* CCZ 13/23 where he stated:

> "In light of the above, the defence of prescription has to be specifically pleaded and properly established by evidence. Indeed the Prescription Act itself provides, in s 20, that the defence of prescription must be specifically pleaded. *In casu*, it is evident that the defence of prescription was not specifically pleaded."

DETERMINATION

The explanation given by the applicant for failure to file heads of argument is that Advocate *Maunze* failed to settle them on time because of his busy schedule. Apart from the failure to submit a supporting affidavit by Advocate *Maunze* to that effect, it is evident that the applicant instructed the advocate very late when the *dies inducae* was almost up. No explanation has been proffered as to why, having been notified on 1 July 2025, it took the applicant until 16 July 2025 to instruct the advocate, not directly, but via email, when time was of the essence.

The applicant only filed this application on 1 October 2025 when it was notified of the dismissal of the appeal on 23 July 2025. The delay of almost two months during which time the applicant was majoring in filing defective applications, is one which complicates the applicant's case even more. Over all, the explanation for the delay remains tenuous indeed.

Regarding the prospects of success, the applicant contented itself with leaning heavily on the mere fact that this Court previously reinstated the same appeal on 28 May 2025. What was lost to the applicant is that the order in question was granted unopposed without the benefit of all the facts that have now been placed before me. The facts in question include the applicant's statement of pleadings in which it admitted the existence of liability at least until 2021 when it issued summons against the respondents.

In its founding affidavit the applicant was presented with an opportunity to demonstrate the prospects of success on appeal. It failed to do so. There is an old adage that an application stands or falls on its founding affidavit. See *Austerlands (Pvt) Ltd* v *Trade and Investments Bank Ltd & Ors* 2006 (1) ZLR 372 (S). More recently, similar remarks were stated by this Court in *Lunat* v *Patel* SC 142/21 at p 7 as follows:

> "The passages in the founding affidavit I have reproduced above do not even begin to show prospects of success. It is not enough for the applicant to refer to the grounds of appeal and expect the court to extrapolate what the prospects of success are. The founding affidavit presents the applicant with an opportunity to set out his case. I cannot piece it together for him. As stated in *Sibanda* v *T.S Timbers Building Supplies (Pvt) Ltd* SC 50/15 a bare and unsubstantiated averment that prospects of success exist is not sufficient."

For all that it is worth, I have shown above that a number of conditions were attached to transfer of the stand from the applicant to the respondents including the fact that the applicant itself still had to institute legal proceedings for the transfer of the land to itself. A subdivision plan still had to be approved. Clearly therefore transfer of the stand to the respondents

in terms of the agreement of the parties, was not predicated merely on the payment of the last instalment in July 2010.

It was therefore incumbent upon the applicant to lead evidence to show when exactly prescription started running. It failed to do so and the appeal court is unlikely to fault the court *a quo* for concluding that the applicant dismally failed to discharge the *onus*.

Allied to that is the applicants very own conduct of instituting proceedings in which it declared that liability to transfer the stand to the respondents subsisted until it allegedly cancelled the agreement, in the applicant's own words, on 29 March 2019. In our law, the debtor's words or conduct should be taken into account in the determination whether or not the running of prescription is interrupted. By virtue of the doctrine of tacit acknowledgement, prescription was interrupted. I therefore do not agree with Mr *Mtima* for the applicant that the applicant's declaration in the withdrawn summons does not amount to interruption of prescription within the contemplation of the Act.

DISPOSITION

The applicant has not shown good sufficient cause for the grant of the indulgence of condonation and extension of time to file heads of argument and for the reinstatement of the appeal. There was a brazen disregard of the rules which has not been satisfactorily explained. More importantly, the applicant's defence of prescription was not proven at the trial. There are no prospects of success on appeal.

The application ought to fail. In the result, it is ordered that:

"The application is dismissed with costs"

MAKONI JA : I agree

CHIWESHE JA : I agree

Jiti Law Chambers, applicant's legal practitioners.

G.S. Motsi Law Chambers, respondents' legal practitioners.